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April 17, 2025

COMMITTEE SUBSTITUTE
FOR ENGROSSED
HOUSE BILL NO. 1356

By: Hardin of the House

and

Woods of the Senate

An Act relating to agriculture; requiring persons entering certain areas to maintain position of the gate at use; prescribing penalties for violation; providing for promulgation of rules; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2-34 of Title 2, unless there is created a duplication in numbering, reads as follows:

A. Any individual entering through gates used for ingress or egress to a property designated as an easement shall maintain the position of the gate upon use.

B. 1. Any individual who violates the provisions of subsection A of this section shall, upon conviction, be guilty of a misdemeanor punishable by a fine not more than Five Hundred Dollars (\$500.00),

1 by imprisonment in a county jail for not more than ninety (90) days,
2 or by both such fine and imprisonment.

3 2. Any individual convicted of a second offense shall, upon
4 conviction, be guilty of a misdemeanor punishable by a fine not more
5 than One Thousand Dollars (\$1,000.00), by imprisonment in a county
6 jail for not more than one hundred eighty (180) days, or by both
7 such fine and imprisonment.

8 3. Any individual convicted of a third or subsequent offense
9 shall, upon conviction, be punished by a fine not more than One
10 Thousand Five Hundred Dollars (\$1,500.00), by imprisonment in a
11 county jail for not more than one (1) year, or by both such fine and
12 imprisonment.

13 4. Any individual convicted pursuant to the provisions of this
14 subsection shall also be liable for damages.

15 C. The Oklahoma Department of Agriculture, Food, and Forestry
16 shall promulgate rules necessary to implement the provisions of this
17 act.

18 SECTION 2. This act shall become effective November 1, 2025.

19 COMMITTEE REPORT BY: COMMITTEE ON ENERGY
20 April 17, 2025 - DO PASS AS AMENDED BY CS

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